

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-21

PKDC, LLC
Complainant,

v.

CMA CGM S.A
Respondent

**COMPLAINANT'S UNOPPOSED MOTION FOR AN EXTENSION OF TIME TO
RESPONSE TO RESPONDANT'S PARTIAL MOTION TO DISMISS**

Pursuant to Federal Maritime Commission (FMC) Rule 102 (46 C.F.R. § 502.102), PKDC, LLC (PKDC) by and through undersigned counsel, respectfully request an extension of time to respond to Respondent's partial motion to dismiss from June 25, 2024, to July 5, 2024 (10 days). PKDC makes this request for a short extension of time in good faith and not for the purposes of delay and has not previously requested an extension of time. Ten days is being requested to ensure further time does not become necessary as a result of the upcoming Fourth of July holiday. As explained below, there is good cause for the instant motion.

PROCEDURAL HISTORY

The complaint in this matter was served Respondent on May 15, 2024. On June 10, 2024, Respondent filed a partial motion to dismiss four of the five counts of the complaint in this matter. Respondent alleges the counts should be dismissed as a result of a lack of jurisdiction and/or for failure to state a claim.

Since receiving the partial motion to dismiss, undersigned counsel has been diligently working on Complainant's response in opposition with the intention of finalizing and filing the opposition on or before the current June 25 deadline. Despite best efforts, as a result of undersigned counsel's challenging schedule, while a draft opposition is underway, it has become apparent that more time will be needed for the opposition to be finalized, reviewed, and filed. More specifically, in addition to other litigation matter, undersigned counsel's schedule has included preparing for two depositions to be held in Pennsylvania at the beginning of next week in a matter currently pending before the Court of International Trade. Unfortunately, the deposition preparation has taken more time than expected.

Because undersigned counsel had been endeavoring to file the opposition on the current due date to move this matter forward as expeditiously as possible and, until today, had reasonably believed the opposition would be ready for filing by that date, the motion is being made at this time (six days prior) and not seven days prior to the deadline. As such there are reasonable grounds for filing this motion six days prior to the due date, and not seven.

As required by 46 C.F.R. 502.71, undersigned counsel has conferred with counsel for Respondent, who advised that Respondent does not oppose the instant request for additional time.

WHEREFORE, it is respectfully requested that the deadline for filing Complainant's response to the partial motion to dismiss be extended to July 5, 2024.

SANDLER, TRAVIS & ROSENBERG, P.A.

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By: /s/ Jason M. Kenner
JASON M. KENNER

/s/ Andrew Margolis
ANDREW MARGOLIS

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 20th day of June 2024, the foregoing motion for an extension of time was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

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Counsel for Respondent
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/s/ Jason M. Kenner